

**THE TELANGANA FACTORIES AND ESTABLISHMENTS
(NATIONAL, FESTIVAL AND OTHER HOLIDAYS) RULES, 1974**

(G.O.Ms.No. 966, Emp. & S.W., Dt. 16-12-1974)

ARRANGEMENT OF RULES

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In exercise of the powers conferred by sub-sections (1) & (2) of section 13 of the ²**Telangana** Factories and Establishments (National, Festival and other Holidays) Act, 1974 (Act XXXII of 1974), the Governor of ²**Telangana** hereby makes the following rules:-

1. Short title:- These rules may be called the ¹Telangana Factories and Establishments (National, Festival and other Holidays) Rules, 1974.

2. Definitions:- In the rules, unless the context otherwise requires-

- (a) “Act” means the ²**Telangana** Factories and Establishments (National, Festival and Other Holidays) Act, 1974;
- (b) “Form” means a form appended to these rules;
- (c) “Section” means a section of the Act.

3. Notification of Festival Holidays :-

- (a) The ³**Joint** Commissioner of Labour, may in their respective jurisdiction notify the five festival holidays (other than the 26th January, the 15th August and the 2nd October), each of one whole day in each calendar year, in consultation with the organizations of employers and employees :

Provided that if a majority of employees or a union of employees in any factory or establishment desires to have 1st May as one of five holidays aforesaid in that factory or establishment, the employees, or the Union of employees of the factory or establishment shall represent their/its desire in writing to the ³**Joint** Commissioner of Labour of the area before the end of November of each year.

- b) The ³**Joint** Commissioner of Labour shall consider the aforesaid representation and shall notify the five holidays by 10th December of each year.

1 The the Andhra Pradesh Factories and Establishments (National, Festival and other Holidays) Rules, 1974. The said Rules in force in the combined state, as on 02.06.2014, has been adapted to the state of **Telangana**, under section 101 of the Andhra Pradesh Reorganisation Act, 2014(Central Act 6 of 2014) vide the notification issued in G.O.Ms. No. 8 of Labour, Employment, Training and Factories (Labour) Department, dated: 01.02.2016.

2 For the words “Andhra Pradesh”, the word “**Telangana**” substituted by G.O.Ms.No. 8, Labour, Employment, Training and Factories (Labour) Department, dated: 01.02.2016

3 For the word “**Deputy**” the word “**Joint**” substituted by G.O.Ms. No. 8, Labour, Employment, Training and Factories (Labour) Department, dated: 01.02.2016.

4. Statement to be sent to the Inspector and displayed in the Industrial establishments:-

- (1) The statement to be sent to the Inspector by the employer under Section 4 of the Act shall be in Form 1 and shall be sent by Registered Post so as to reach the Inspector before commencement of each year in which the holidays are to be allowed.
- (2) Every employee shall exhibit simultaneously in his factory or establishment a copy of the statement referred to in sub-rule (1) at a place which can be readily seen and read by the employees and shall maintain it in a legible condition.

5. Manner of service of notice and calculation of daily average wages:-

- (1) The notice referred to in sub-clause (i) of clause (a), of subsection (2) of Section 5 of the Act shall be in Form II and it shall be served—
 - (i) by giving or tendering to the employee ; or
 - (ii) if the employee is not found, by leaving such notice at his last known place of abode, or by giving or tendering the same to some adult member of his family.
- (2) The signature of the person to whom the notice is given or tendered together with the date on which and hour at which it was so given or tendered shall be obtained on a duplicate copy of the notice.
- (3) For the purpose of the proviso to clause (b) of sub-section (2) of Section 5 of the Act the daily average wages of an employee mentioned in that sub-section shall be calculated by dividing by twelve the total wages earned by him during any period of twelve days within a continuous period of thirty days immediately preceding the holiday concerned, such twelve days being days on which he had actually worked.

6. Maintenance of registers and records:-

- (1) Every employer shall maintain a register in Form III and it shall be produced whenever it is required by the Inspector having jurisdiction over the area :

Provided that no separate register need be maintained if the Inspector having jurisdiction over the area in which the factory/establishment is situated is satisfied that the particulars required are contained in any other register maintained by the employer.

- (2) Every employer shall maintain a visit book in which the Inspector visiting the factory/establishment may record his remarks regarding any defects that may come to light at the time of his inspection and shall produce it whenever required to do so by the Inspector :